

• Natvej Singh Johar V. Union of India (2018)

- Reaffirmed LGBTQ+ rights
- "Constitutional Morality requires that the rights of every individual must be protected."
- Majoritarian Morality cannot dictate constitutional rights

• Indian Young Lawyers V. State of Kerala (2018)

- Sabarimala temple entry for women
- Constitutional Morality over religious traditions
- Individual dignity is paramount
- Dissent highlights tradition - transformation tension.

• Shayara Bano V. UOI (2017)

- Triple Talac unconstitutional
- Gender Justice over religious practice
- Constitutional Value Supreme
- Personal law subject to FRs.

US & se

• Obergefell V. Hodges (2015)

- Same Sex marriage rights.

• ECHR (EU)

- Homosexuality decriminalization
- Transgender rights recognition
- Assisted dying - Euthanasia.

* Judicial Decision-Making

The Judge's Dilemma

- Judges navigate between
 - Personal beliefs
 - Social Expectations
 - Constitutional Mandate
 - Precedent Constraints
 - Political Pressure

• Burden of Proof.

→ It must not be taken as burden.

Core Components of BOP:

1. Burden of Production (Evidential Burden)
2. Burden of Persuasion (Legal burden)

Error Distribution Theory:

1. Type I Error
 - Convicting the innocent

2. Type II Error
 - Acquitting the guilty

• Risk Allocation Theory

1. A2Ev (Access to Evidence)
 - Party with better access bears burden.
 - Information Asymmetry Correction

- Elements Requiring Proof:
 - Actus Reus
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→ Action / Event Occured
 → Action / Omission of by very defendant
 - Mens Rea
 - Causation
 - Absence of defence
 - Jurisdictional facts.
- Criminal law: Beyond Reasonable Doubt
- Civil law: Preponderance of Evidence

Execution of Judgement:

- Civil Imprisonment
- Criminal "

Gen Z Revoln

Imp. CRISIS MGMT

2021/6/6
 सत्यमेव जयते
 कीर्तिपुर

prosecutor to disprove such claim, This would lead to a breakdown in enforcement

* Ignorance of law has no excuse is a ^{legal} fiction.

- A legal fiction is an assumption or acceptance of sth as true, despite it being false or improbable, because it serves a practical purpose in administering the law.

- Utilitarian Purpose.

1. It is impossible for any individual to have comprehensive knowledge of the entire body of law. Due to:

- Volume
- Complexity
- Accessibility
- Limited Intelligence & Memory

2.

2. This principle is upheld not because it is morally right, but because it is pragmatically essential for the functioning of legal system.

→ If ignorance of law were a valid defense every defendant would claim they were unaware of the law, difficult for #

→ Judicial Efficiency

- The fiction creates a clear, bright line that streamlines the judicial process.
- Court focus on "what the defendant did," not on "what the defendant knew."

Note:

Recidivist deserves more punishment as they are less ignorant to the law.

Thus, we can say somewhat ignorance of law can be a mitigating factor for the punishment.

We sacrifice theoretical fairness for practical order.

This trade-off is a classic characteristic of legal fiction.

may be struck down as unconstitutional.

Existence of Exceptions

- Specific Vs. General Intent Crimes:

A mistaken belief about the law can sometimes negate the required mens rea. (for crime that needs specific intent)

2. Reliance of an official interpretation:

A defense is allowed if a person reasonably relied on an official but erroneous interpretation of the law from a government official responsible for its enforcement or interpretation.

3. Novel & Unforeseeable laws:

→ Courts sometimes make exceptions where a law is so new, obscure, or unforeseeable that a person could not have been reasonably expected to know of it.

4. Constitutional Challenge:

If law is so vague & if it fails to give ordinary people fair notice of what is prohibited

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Contradictions

→ This conflicts with the basic moral intuition that punishment should be reserved for those with a culpable state of mind. (guilty mens rea)

→ It assumes a duty to know the law but doesn't always impose a correlative duty on the state to make every law knowable & understandable.

It creates asymmetrical burden.

While the maxim is necessary, it inherently carries injustice which is mitigated by the exceptions courts have developed.

It must be ^{maxims} noted that ~~the~~ legal fictions sometimes yield undesirable/untenable result.

Other Legal Fiction:

1. Reasonable Person

→ hypothetical standard to measure conduct especially in negligence case.

2. Corporate Personality

3. 21 day rule (now abolished)

→ for a homicide to occur

4. 2034 साल अधिक्ती कार्ये जालीनामाले मान्यता द्याने

5. Presumption of Death.

→ a person missing continuously for 12 years is deemed to be dead in the eye of law.

These legal fiction are tools of judicial & legislative policy. This allow the law to:

- (i) Adapt
- (ii) Simplify
- (iii) Achieve Equity
- (iv) Overcome Evidentiary Hurdles.

→ proving death, ~~new~~ ancient documents.

Cyber Crime: The Digital Pandemic

- Bureau Revolution.
- Against Bureau Revolution.

न्यायको अखण्ड दीप मर्न दिनु हुदैन ।

६ न्यसो भएर धेरै को आन्दोलनमा ~~परिणत~~
आजन्सी हुँदा पनि त्रिपालपुरी (३ दिनभित्रै)
इजलास लाग्यो ।

• Architecture of any legal system rests upon four pillars: locus standi, limitation, jurisdiction & res judicata.

— These four pillar collectively shape the boundaries of judicial power & A.J.

- Reform, perform & transform
- Dynamic Equilibrium.
- Wooden Iron Paradox

जिम्मा अदालतबाट प्रवाह हुने सेवाहरू

- म्याद थप
- कल डिटेन अनुमति
- जरुरी पक्राड पूजी स्वीकृती
- पक्राड पूजी अनुमति
- बन्दी प्रत्यक्षीकरण निर्वादन
- अभियोगापत्रस्वाय अघस्थान गराइएका प्रतिवादीहरूको बयान स्वं चुनिएको
- दर्ताद्वारा विवाह
- अचिह्नित दारेशनानामा
- मृत्युको न्यायिक घोषणा
- संरक्षक नियुक्ति
- विशेष प्रकृतिका निवेदनहरूको दर्ता तथा कारवाही

दुलाल - दुलाल

दुलाल का कार्यकर्ता र अम दुलाल नै दुलाल भए।

• व कौडको पुल उदघाटन गर्न छ कौड खुर्चा

- Homo sapiens $\rightarrow$ Homo Economicus.

- सरकार परिवर्तन $\rightarrow$ प्रधानमन्त्री परिवर्तन हुन्छ
अन्तर्गत परिवर्तन $\rightarrow$ संविधान नै परिवर्तन हुन्छ

- Human Personality can be described by

OCEAN $\rightarrow$ Neuroticism.

↓ Agreeableness

↓ Extraversion

↓ Conscientiousness

↓ Openness

Re

• Nepal को politics / political parties को चर्चेमा लई
Retrofitting गरेर हुर्दैन, Dismantle नै गर्नुपर्छ।

• अन्तर्गत अनेको लत हो (power addition)

• नेपालमा संवैधानिक पद, राजनीतिक नियुक्ति हुने
पद विधिमा रहेछन् / लिज्जामा रहेछन्।

- ओरल. देउवाको घरमा रकम भेटिनु
(Gen Z revelation)

• ~~Interim~~ Interim Gov - Trial & Error को छुट हुँदैन।
अन्तः यहाँ विजय भएको
मानि चिहिनै।

• SKILL MGMT

• e-Mgmt

- Headless Movement - Gen Z Movement

- प्रधान निवर्तित कार्यकारीको भ्रमण अन्तर्गत election को
pre-date मा सार्नु बाहेक अरु अपलब्धि रहेको।

Gen Z को revolution predate मा election सार्नु
त हाइन नि।

सुप्रीम सचिवालयको दैन - Gen Z
 Revolution in Nepal.
 Sept 8 } Gen Z
 अक्ट २३ } Revolution

Law aids the vigilant, not those who sleep.

Sufficient Cause JP:

~ The Indian Limitation Act & S permits courts to condone delay in filing appeals & applications (not suits) if sufficient cause is shown.

What Constitutes Sufficient Cause:

- Illness of party / counsel
- Misleading by court / officials
- Bonafide Mistake of counsel
- Time spent in pursuing wrong remedy
- Pendency of connected proceedings
- Legal Aid Delay
- Natural Calamities

Not Sufficient Cause:

- Ignorance of law
- Negligence of counsel (generally)
- Financial Difficulties (alone)
- Tactical Decisions
- Change in law retrospectively
- Workload of Counsel.

• Res Judicata Principle

Core Elements (वस्तुतः)

- Matter directly & substantially in issue
- beth same parties & representatives
- litigated & decided
- In court of competent jurisdiction
- Final decision on merits.

Underlying policies:

- Public Interest in finality of litigation
- No one should be vexed twice for same cause.
- judicial economy & efficiency
- certainty & predictability
- preventing contradictory ~~issues~~ decisions
- protecting judicial integrity

- A judgement from a court without jurisdiction is a nullity & cannot create res judicata.

• Misconception regarding ownership:

- If I find it, it's mine

— finders Keepers, losers weepers

- If it's on my property, it's mine.

→ स्वामित्वको अग्रगण्य आगन्तव्य आउदैमा स्वामि हुदैन्।

- Buying sth from a thief give me ownership

→ legal principle "nemo dat quod non habet" (you cannot give that what ~~de~~ you do not have)

⇒ A thief has no legal title to the item, so they cannot transfer a valid to you, even if you are buying in good faith (innocent buyer)

- Squatters can easily claim my house if I go on vacation. (Adverse Possession)

⇒ The concept of adverse possession is real but extremely difficult to achieve. It requires a set of very strict condition to met continuously.

- yet, though
- but, while
- however
- whatsoever

Extradition & MLA:

- Ex & MLA represent the twin pillars of international cooperation, yet serves fundamentally different purposes.

- While extradition deals with persons, MLA deals with evidence & information sharing.

- MLA Refusal $\rightarrow$ $\left\{ \begin{array}{l} \text{Mandatory Refusal} \\ \text{Discretionary} \end{array} \right.$

$\rightarrow$ Conditional Execution

- Ex & MLA are contemporary tools for Global Justice.

- Ex & MLA are complementary mechanism for effective cross-border law enforcement.

• Fundamental Difference

- Ex - Moving the person to the Justice
MLA - Moving the evidence to support justice.

• Operational Difference

Ex - High stakes, political sensitivity
liberty deprivation
MLA - lower profile, administrative cooperation, information sharing

• Legal Difference

Ex - strict treaty requirements,
dual criminality, multiple bars
MLA - Flexible frameworks, broader cooperation, fewer restrictions